

STATE OF NORTH CAROLINA

COUNTY OF VANCE

The Vance County Board of Commissioners met in special joint session with the Vance County Board of Education on Monday, October 21, 2019 at 12:00 Noon in the Perry Library Farm Bureau Room, 205 Breckenridge Street, Henderson, NC.

Board of Commissioners present: Chairman Archie B. Taylor, Jr., Commissioners Dan Brummitt, Carolyn Faines, Yolanda J. Feimster, Thomas S. Hester, Jr., and Leo Kelly, Jr.

Absent: Commissioner Gordon Wilder.

Also present were County Manager Jordan McMillen, Finance Director Katherine Bigelow, County Attorney Jonathan S. Care, and Clerk to the Board Kelly H. Grissom.

Board of Education present: Chair Dorothy Gooch, Vice-Chair Edward Wilson, Linda Cobb, Margaret Ellis, Ruth Hartness, Darlynn Oxendine, and Gloria White.

Absent: None

Also present were Superintendent Tony Jackson, School Attorney Jerry Stainback, and Clerk to the Board Deanna Steed.

Chairman Archie B. Taylor, Jr. and Chair Dorothy Gooche welcomed the group and thanked everyone for coming together.

Commissioner Carolyn Faines gave the invocation.

The purpose of the special meeting was to receive an update on the Leandro Case, receive an update on the consolidation of schools, approval of a capital funding agreement and facility transfer agreement, and to receive an update on the broadband initiative.

*Leandro Case Update.* Mr. Scott Bayzle, Parker Poe, presented an update on the Leandro Case. He explained that the Leandro case began in 1994 when five school districts, including Vance County, along with parents, sued the state claiming the state was not providing their students with the same educational opportunities as students in wealthier districts.

The requirements that the court ruled are needed to meet its obligation of providing a sound basic education include:

- A competent, certified, well-trained teacher who is teaching the standard course of study in every classroom;
- A well-trained competent principal with the leadership skills and ability to hire and retain competent, certified and well-trained teachers in every school; and
- The resources necessary to support the effective instructional program in every school so that the education needs of all children can be met, including at-risk children, and to have an equal opportunity to obtain a sound basic education.

Looking forward, parties will present proposed consent order of specific action to achieve compliance with constitutional mandates. Mr. Bayzle stated that when a court order is presented, it could be a huge turning point for public education across the state.

*School Consolidation Update.* Superintendent Tony Jackson was next on the agenda and presented an update on the consolidation of the middle and high schools. For the Vance County Middle School, there has been an increase in enrollment, academic achievement, efficiency/utilization, and an increase in clubs and activities. There has been a decrease in disciplinary referrals. The high school has seen these same results as well as a reduced dropout rate and an increased graduation rate. Vance County's graduation rate is 86.7%, which is second in the region only to Wake County. Innovative programs offered include the AdVance Academy, STEM Early High School, and Vance County Early College. Mr. Jackson also stated that overall enrollment has increased.

School Attorney Jerry Stainback and County Attorney Jonathan Care presented the capital funding agreement and the agreement for conveyance of Eaton Johnson school property. It was noted that the Board of Education has approved both agreements.

*Capital Funding Agreement.* The capital funding agreement outlines the county's commitment to Vance County Schools for funding the school system's five year capital improvement plan (CIP). The county would be agreeing to obtain a future advance loan which would be funded utilizing dedicated school capital sales tax, lottery funds if necessary, and any future state issued bonds. Following approval of the agreement, the board will need to approve a budget amendment allocating an additional \$222,250 in pay-go funds during the current fiscal year to fund planning efforts for the CIP projects. This amendment along with a reimbursement resolution will be brought to the board at its next meeting. The total value of the CIP over five years totals \$8.3 million and provides a multi-year capital funding plan for the school system to include several facility usage redesigns, preventative maintenance items, school safety, and technology initiatives.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approve the capital funding agreement with Vance County Schools and authorize the chairman to execute the agreement and any associated documents.

*Agreement for Conveyance of Eaton Johnson School Property.* The real estate agreement outlines the school system's commitment to convey the Eaton Johnson school property to the

county. The school system has previously gone through the appropriate procedures to declare the property surplus and the county has determined it has a desire in owning, using and possessing the property. Following approval of the agreement, the attorneys will begin working to prepare the necessary conveyance documents to be completed in the near future.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approve the real estate agreement for the conveyance of the Eaton Johnson school property to the county and authorize the chairman to execute the agreement and any documents associated with the conveyance.

*Broadband Update.* County Manager Jordan McMillen provided an update on the county's broadband initiative. He explained that a committee was formed in 2016 to explore broadband options for the county. A citizen survey was released in late 2016 and results indicated there were unserved and underserved areas in the county in need of high speed internet and/or better service options. In early 2018, Vance County partnered with Franklin and Granville Counties and formed a regional broadband initiative. The counties contracted with Mighty River, LLC to assist in developing a broadband strategy and to facilitate an RFP process. RFPs were released to internet providers in late 2018 and Open Broadband was selected to provide wireless internet across the entire county over the next four years. Mr. McMillen asked the board of education to assist in getting the word out about this initiative.

As there was no further business, at 1:15 p.m., motion was made by Commissioner Leo Kelly, Jr., seconded by School Board Member Gloria White, that the meeting be adjourned.

**Approved and signed November 4, 2019.**

**Archie B. Taylor, Jr. (signed)**  
**Archie B. Taylor, Jr., Chairman**